

Amendment No. 1 to HB1515

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 1673

House Bill No. 1515*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 67-5-1301(a), is amended by deleting subdivision (11) and substituting instead:

(11) Motor bus and/or truck companies, which do not include towing companies, and which are:

(A) Companies that operate commercial motor vehicles exclusively authorized for hire holding United States department of transportation registrations issued by this state through the performance and registration information systems management (PRISM) or the federal motor carrier safety administration (FMCSA), including those owner operators who operate under the motor bus and/or truck company's motor carrier authority, and that:

- (i) Are domiciled in this state;
- (ii) Own or lease real or personal property located in this state; or
- (iii) Meet subdivisions (a)(11)(A)(i) and (ii); or

(B) Subsurface passenger transit companies that:

- (i) Operate vehicles primarily through subsurface tunnels or below-ground conduit tunnel systems;
- (ii) Own and operate the subsurface tunnels or below-ground conduit tunnel systems that are used for passenger transit;

(iii) Own, use, or lease the vehicles that are used for transporting passengers through the subsurface tunnels or below-ground conduit tunnel systems; and

(iv) Are engaged in the business of transporting passengers through subsurface tunnels or below-ground conduit tunnel systems;

SECTION 2. Tennessee Code Annotated, Section 67-5-1308, is amended by designating the existing language as new subsection (a) and adding the following as a new subsection (b):

(b) In addition to the information required by subsection (a), the schedules and statements submitted by subsurface passenger transit companies must include:

(1) A listing of all tangible personal property that the company owns, uses, or leases in the operation of its business;

(2) A description, including the location and the length in miles, of all conduit tunnels and stations owned by the company;

(3) The total direct and indirect costs associated with making the company operational; and

(4) Any other information that the comptroller of the treasury may reasonably require.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.